

LEC16 - Crime and Law

What is Crime

- The violation of criminal law
 - Violation of law that takes place in public
 - Typical crimes like robbery and murder
 - Crimes committed by respected people in the course of employment
 - Crimes involving deceit concealment, etc.
-

Measuring Crime

- Official statistics
 - Police reported crime data
 - Self-report surveys
 - Report involvement in crime
 - Victimization surveys
 - Report involvement in victimization
-

Reasons People Don't Report Crime

- Fear mongering
 - Not wanting to be bothered with the hassle
 - Not wanting to relive the trauma
 - If you were also involved in crime
-

Explaining Crime

- Crime is another human behaviour that naturally happens
 - Sometimes social, biological, genetic
 - Upbringing
-

Structural

- Routine activities
 - Daily routines create opportunities for crime
 - Convergence of motivated offenders, suitable targets, absence of guardians
 - After WW1 burglaries switched to daytime since women were at work and houses were empty
- Social disorganization
 - Bad neighbourhoods cause crime

LEC16 - Crime and Law

- Transience, low opportunity, poverty, low education, drug use, gangs, and disrepair are correlated to crime rate
 - Strain
 - The inability to achieve societal goals causes crime
 - Social goals vs acceptable means
 - Adaptations to strain
-

Personal

- Biological
 - Genes cause crime
 - Predispositions to aggression, gene-environment interactions
 - Psychological
 - Personality traits cause crime
 - Narcissism, psychopathy, impulsivity, extraversion, neuroticism
-

Interactionist

- Labelling
 - Social groups create deviance by applying rules and labeling people
 - Social construction of crime and labels
 - Social learning
 - Bad friends create crime
 - Interacting with criminal peers exposes us to norms, values, attitudes supportive of crimes
 - Subculture
 - Working class socialization sets people up for failure, creating criminal subcultures
 - Reaction to unachievable middle class standards
-

Control

- Social bonds
 - People don't commit crime because of prosocial bonds
 - Attachment, commitment, involvement, belief
- Low self control
 - People don't commit crime because they have self-control
 - Lack of development of self control by age 7 leads to LSC
 - Impulsive, short sighted, and recklessness leads to crime

Rational Choice

- Deterrence
 - Crime occurs because the benefits outweigh the costs
 - Certainty, severity, celerity
 - Situational crime prevention
 - Crime occurs because criminals perceive opportunities to commit crime
 - Reduce crimes by reducing opportunities
 - Effort, risk, reward, provocation, excuses
-

What is Law

- A system of rules to regulate behaviour
 - Enforced through state and social institutions
 - Sanctions are the penalty for disobeying or breaking the law
 - The formal, official written legal statutes, legislation, acts, court decisions, and regulations, as well as rules for their enforcement
-

Types of Law

Public Law: Rules for the relationship between individuals and society

- Deals with issues that affect the public or state
- Even though individuals are harmed, committing a crime like robbery is public law because committing a crime is thought to be a wrong against society rather than as an individual

Private Law: Rules for the relationship between individuals or groups

- Deals with rights and obligations of individuals, groups, and businesses
 - Assists citizens in private disputes
 - Suing someone or filing a lawsuit against a person or business is private law
-

Law in Action

- The decisions, actions, or experiences individuals or organizations have that involve law
- Can influence whether law or legal consequences might be important for how decisions are made
- Decisions are the “action” of law in action